

Animal Slaughterhouse and Meat Inspection Act, 1999

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Animal Slaughterhouse and Meat Inspection Act, 2055 (1999)

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2010) 2066.10.17
2. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13
3. Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018) 2075.11.19

Act No. 26 of the year 2055 (1999)

An Act Made to Provide for Animal Slaughterhouse and Meat Inspection

Preamble: Whereas it is desirable to make provision for the establishment of animal slaughterhouses and meat inspection in order to prevent adulteration in meat and food products made from meat, to maintain the hygiene of meat and to prevent deterioration of the natural quality of meat, thereby preserving the health and welfare of the general public, and for maintaining an appropriate standard;

Therefore, Parliament has enacted this Act in the twenty-seventh year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Animal Slaughterhouse and Meat Inspection Act, 2055 (1999)."

(2) This Act shall come into force in such area and from such date as the Government of Nepal may, by notification in the Nepal Gazette, specify. The date and place of commencement of this Act are mentioned in the Schedule. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Animal" means a goat (male) whether castrated or not, sheep, goat (female), pig, boar, yak, rabbit, or buffalo, goat (female), sheep (female), pig, boar, or rabbit deemed suitable for meat, excluding cow, ox, bull; and the word shall also include male or female chicken, duck, pigeon, or other birds or animals reared for the purpose of meat.

(b) "Meat" means the meat of an animal suitable for human consumption.

(c) "Meat Inspector" means a Meat Inspector appointed or designated under Section 6.

(d) "Meat Supervisor" means a Meat Supervisor designated under Section 7.

(e) "Animal Slaughterhouse" means a house or place built for the slaughter of animals for meat.

(f) "Meat Seller" means a person engaged in the business of selling meat.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Not to Establish Animal Slaughterhouse or Sell Meat without Licence: No person shall establish an animal slaughterhouse or work as a meat seller without obtaining a licence under this Act. 4.

Establishment of Animal Slaughterhouse: (1) The Government of Nepal or the Provincial Government may, by notification in the Nepal Gazette, establish an animal slaughterhouse in any area of Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2010).. (2) Notwithstanding anything contained in subsection (1), the Government of Nepal or the Provincial Government may grant permission as prescribed for the establishment of an animal slaughterhouse even in the non-governmental sector, Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018).. (3) The conditions to be observed and the standards to be adopted in establishing and operating an animal slaughterhouse under subsection (1) or (2) shall be as prescribed. 5. Licence: (1) A person or entity wishing to establish an animal slaughterhouse or work as a meat seller shall submit an application in the prescribed form to the prescribed authority. (2) Upon receipt of an application under subsection (1), the prescribed authority shall make necessary inquiries regarding such application and, upon collecting the prescribed fee, issue a licence in the prescribed form to the applicant to establish an animal slaughterhouse or to work as a meat seller. (3) The conditions to be observed by a meat seller shall be as prescribed. 6. Appointment of Meat Inspector: (1) Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018). The Government of Nepal or the Provincial Government may appoint or designate a person who has obtained at least a postgraduate degree in veterinary science as a Meat Inspector for the inspection of animals and meat. (2) In addition to the duties, functions, and powers mentioned in this Act, other duties, functions, and powers of the Meat Inspector shall be as prescribed. 7. May Designate Meat Supervisor: (1) Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018). The Provincial Government or the local level may designate an employee who has obtained at least a postgraduate degree in veterinary science as a Meat Supervisor for the management of animal slaughterhouses and the supervision of the work of Meat Inspectors. (2) Omitted by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018). (3) Other duties, functions, and powers of the Meat Supervisor shall be as prescribed. 8.

Animal Must be Inspected Before Slaughter: (1) Before any animal is slaughtered, in an area where an animal slaughterhouse is established, such animal must be inspected at the animal slaughterhouse, and in an area where no animal slaughterhouse is established, at a place designated by the Meat Supervisor. The procedure for animal inspection shall be as prescribed. (2) If, upon inspection under subsection (1), the animal is found suitable for slaughter, the Meat Inspector shall, after also marking a sign, grant permission to slaughter such animal. (3) If, upon inspection under subsection (1), the animal is found to be diseased, the Meat Inspector may prohibit the slaughter of such animal. 9. Animal Must be Slaughtered in Animal Slaughterhouse: (1) An animal found suitable for slaughter under Section 8 shall be slaughtered in an animal slaughterhouse. Provided that, an animal shall not be slaughtered on a day prohibited by the prevailing law. (2) Notwithstanding anything contained in subsection (1), in an area where no animal slaughterhouse is established, such animal shall be slaughtered at the time and place designated by the Meat Supervisor. 10. Meat of Slaughtered Animal Must be Inspected: (1) The meat of an animal slaughtered under Section 9 shall be inspected by the Meat Inspector as prescribed. (2) If, while inspecting the meat of an animal slaughtered under subsection (1), the Meat Inspector finds any defect or disease in such meat, the Meat Inspector may

prohibit the sale or distribution of such meat, either partially or completely. (3) For the purposes of this Section, the Government of Nepal may designate a laboratory for meat inspection. 11. Not to Sell Meat: (1) Meat of an animal other than those mentioned in clause (a) of Section 2 shall not be sold. (2) Meat of an animal that has died naturally, whether due to disease or not, shall not be sold. (3) Meat with its skin shall not be sold. Provided that, nothing in this Section shall be deemed to prevent the sale of meat of birds, pigs, or boars with skin, or meat of such parts as are necessary to identify the species of the animal, or the head or feet of the animal with skin. 12. Stamp or Mark Must be Affixed on Meat: (1) When the Meat Inspector, after inspecting the meat of an animal, permits the sale of such meat, a stamp or mark as prescribed shall be clearly affixed on such meat. (2) A meat seller shall not sell meat which has not been stamped or marked under subsection (1). 13.

Not to Sell Adulterated Meat: (1) Meat of one species of animal shall not be sold as meat of another species of animal, nor shall meat of one species of animal be mixed with meat of another species of animal and sold. (2) Meat shall not be sold with any substance mixed into it in a manner that changes the natural quality or taste of the meat or increases its weight. 14. Fee to be Levied: The fee payable for the inspection of an animal or meat under this Act shall be as prescribed. 15. May Enter: A Meat Inspector or Meat Supervisor may, at any time, enter an animal slaughterhouse or a place where meat is sold and inspect the animal or meat, or take samples of meat. It shall be the duty of all concerned to provide assistance in such work. 16. Not to be an Obstruction: Notwithstanding anything contained elsewhere in this Act, nothing in this Act shall be deemed to obstruct the slaughter of an animal in places other than an animal slaughterhouse and the consumption of meat with skin in connection with events such as traditional festivals, religious worship, any feast, or religious ceremonies. 17. Punishment: (1) A person who violates subsection (1) or (3) of Section 8, Section 9, subsection (2) of Section 10, subsection (3) of Section 11, or subsection (2) of Section 12 shall be liable to a fine of up to five thousand rupees for the first offence, and for each subsequent offence, a fine of up to ten thousand rupees, or imprisonment for up to one month, or both. (2) A person who violates Section 3, subsection (1) or (2) of Section 11, or Section 13 shall be liable to a fine of up to ten thousand rupees for the first offence, and for each subsequent offence, a fine of up to twenty thousand rupees, or imprisonment for up to three months, or both. 18. Delegation of Powers: Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018). The Government of Nepal or the Provincial Government may delegate some of the powers conferred upon it under this Act to any body as required. 19. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 20.

Investigation and Filing of Cases: (1) The investigation of an offence under this Act shall be conducted by a Meat Inspector appointed by Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018). the Government of Nepal, and upon completion of the investigation, the case shall be filed before the adjudicating officer. (2) When filing a case before the adjudicating officer under subsection (1), the officer conducting the investigation may consult with the government attorney. Amended by the Some Nepal Acts Amendment Act, 2072 (2015). 21. Adjudicating Officer: Cases relating to offences under this Act shall be heard by the Chief District Officer, and a person aggrieved by the decision of the Chief District Officer may appeal to the District Court. 22. To be According to Prevailing Law: Matters provided for in this Act shall be according to this Act, and other matters shall be according to the prevailing law. 23. Power to Make Rules: The Government of Nepal may make necessary rules to implement the objectives of this Act. 24. Repeal: Numbers 3 and 16 of the Chapter on Quadrupeds of the Country Code (Muluki Ain) are hereby repealed.